

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1002
(Appropriations Committee)

AN ACT to provide an appropriation for defraying the expenses of the office of the secretary of state; to amend and reenact sections 46-03-11, 46-04-01, 46-04-03, 46-04-04, 46-04-10, 46-04-14, 46-04-18, 46-04-19, and 54-09-05 of the North Dakota Century Code, relating to public printing and the salary of the secretary of state; to provide for a transfer; and to provide an exemption.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. APPROPRIATION. The funds provided in this section, or so much of the funds as may be necessary, are appropriated out of any moneys in the general fund in the state treasury, not otherwise appropriated, and from other funds derived from special funds and federal funds, to the secretary of state for the purpose of defraying the expenses of the secretary of state and public printing, for the biennium beginning July 1, 2025, and ending June 30, 2027, as follows:

SECRETARY OF STATE

Subdivision 1.

	<u>Base Level</u>	<u>Adjustments or Enhancements</u>	<u>Appropriation</u>
Salaries and wages	\$6,366,407	\$587,108	\$6,953,515
New and vacant FTE pool	0	148,177	148,177
Operating expenses	4,984,331	2,171,051	7,155,382
Grants	25,000	0	25,000
Petition review	8,000	0	8,000
Election reform	<u>4,830,808</u>	<u>4,397,006</u>	<u>9,227,814</u>
Total all funds	\$16,214,546	\$7,303,342	\$23,517,888
Less other funds	<u>9,344,171</u>	<u>4,732,898</u>	<u>14,077,069</u>
Total general fund	\$6,870,375	\$2,570,444	\$9,440,819
Full-time equivalent positions	35.00	(2.00)	33.00

Subdivision 2.

SECRETARY OF STATE - PUBLIC PRINTING

	<u>Base Level</u>	<u>Adjustments or Enhancements</u>	<u>Appropriation</u>
Public printing	<u>\$271,335</u>	<u>(\$271,335)</u>	<u>\$0</u>
Total general fund	\$271,335	(\$271,335)	\$0

Subdivision 3

TOTAL - SECTION 1

	<u>Base Level</u>	<u>Adjustments or Enhancements</u>	<u>Appropriation</u>
Grand total all funds	\$16,485,881	\$7,032,007	\$23,517,888
Grand total other funds	<u>9,344,171</u>	<u>4,732,898</u>	<u>14,077,069</u>
Grand total general fund	\$7,141,710	\$2,299,109	\$9,440,819

SECTION 2. ONE-TIME FUNDING - EFFECT ON BASE BUDGET - REPORT TO THE SEVENTIETH LEGISLATIVE ASSEMBLY. The following amounts reflect the one-time funding items included in the appropriation in section 1 of this Act which are not included in the entity's base budget

for the 2027-29 biennium and which the entity shall report to the appropriations committees of the seventieth legislative assembly regarding the use of this funding:

<u>One-Time Funding Description</u>	<u>Other Funds</u>
Election pollpads and cradle points	\$2,800,000
Information technology enhancements	700,000
Election security grant	100,359
Help America Vote Act	<u>1,000,000</u>
Total other funds	\$4,600,359

SECTION 3. NEW AND VACANT FTE POOL - LIMITATION - TRANSFER REQUEST. The secretary of state may not spend funds appropriated in the new and vacant FTE pool line item in section 1 of this Act, but may request the office of management and budget to transfer funds from the new and vacant FTE pool line item to the salaries and wages line item in accordance with the guidelines and reporting provisions included in House Bill No. 1015, as approved by the sixty-ninth legislative assembly.

SECTION 4. OTHER FUNDS - STRATEGIC INVESTMENT AND IMPROVEMENTS FUND. The other funds line item in section 1 of this Act includes the sum of \$3,500,000 from the strategic investment and improvements fund for election pollpad and cradle points replacement and information technology system enhancements for the secretary of state.

SECTION 5. TRANSFER - GENERAL FUND - ELECTION FUND. The office of management and budget may transfer up to \$600,000 from the general fund, appropriated in the election reform line item in section 1 of this Act, to the election fund to match federal funds received by the state, as requested by the secretary of state, during the biennium beginning July 1, 2025, and ending June 30, 2027.

SECTION 6. AMENDMENT. Section 46-03-11 of the North Dakota Century Code is amended and reenacted as follows:

46-03-11. Publication of session laws and pocket supplements.

The ~~secretary of state and the~~ legislative council shall correct ministerial or clerical errors and supervise the publication of the session laws and pocket part supplements to this code in a manner and form prescribed by the legislative council, correlating each year's laws with this code.

SECTION 7. AMENDMENT. Section 46-04-01 of the North Dakota Century Code is amended and reenacted as follows:

46-04-01. Official distribution of state laws - ~~Secretary of state~~ Legislative council to control.

Each member of the legislative assembly ~~and each~~ constitutional officer of the state, and ~~each~~ judge of the supreme and district courts for the use of their respective offices and departments is entitled to receive from the state a copy of any publication of the laws of the state and of any compilation or codification ~~thereof~~ of the laws of the state published under authority of the state. The district court in every county in the state is entitled to a copy of ~~such~~ the publications. The codification of laws of the state received by each member of the legislative assembly is subject to section 54-03-23. The ~~secretary of state~~ legislative council shall designate other offices and agencies of the state that are entitled to receive copies of ~~any such~~ a publication of the laws for the use of ~~such~~ the state offices and agencies and also shall determine the number of copies of any publication to be received by any recipient in a distribution under the provisions of this section, if more than one copy is needed by ~~such~~ the recipient for official use. All agencies that are funded entirely from special state funds or federal funds must be charged for the actual cost of each copy of ~~such~~ the publications that the agency requests.

SECTION 8. AMENDMENT. Section 46-04-03 of the North Dakota Century Code is amended and reenacted as follows:

46-04-03. Distribution of session laws, compilations, and codifications by ~~secretary of state~~legislative council.

~~The secretary of state, as soon as conveniently can be done after~~legislative council shall distribute as provided in sections 46-04-01 and 46-04-02 the publication of any session laws, compilations, or codifications, ~~shall cause copies thereof to be distributed as provided in sections 46-04-01 and 46-04-02~~and copies of those documents, as soon as practicable. ~~The secretary of state, in addition,~~legislative council shall furnish to the legislative assembly such additional copies as are necessary upon resolution of the respective branches or committees thereof ~~of the legislative assembly~~ and shall furnish to each member of the legislative assembly, upon demand ~~and therefor request~~, such current volumes of laws as ~~have not been obtained by the member~~ through service in previous sessions.

SECTION 9. AMENDMENT. Section 46-04-04 of the North Dakota Century Code is amended and reenacted as follows:

46-04-04. Session laws, compilations, and codifications remain property of state.

Except as otherwise provided by law, each copy of laws, compilations, or codifications furnished to any officer, department, or agency of the state, or to the legislative assembly, its officers, or committees is and must remain the property of the state and must be surrendered to the ~~secretary of state~~legislative council or to the recipient's successor in office.

SECTION 10. AMENDMENT. Section 46-04-10 of the North Dakota Century Code is amended and reenacted as follows:

46-04-10. Duties of ~~secretary of state~~legislative council - Exchange of laws with other states.

The ~~secretary of state~~legislative council may distribute copies of all laws passed by each legislative assembly and all compilations or codifications of the same, ~~whenever it seems desirable~~laws passed by each legislative assembly:

1. In exchange for like publications of other states.
2. To replace copies lost or damaged in official use.
3. To provide copies as needed to state officers, boards, commissions, institutions, or agencies of the state.
4. To provide copies as needed to the national conference of commissioners on uniform state laws.

SECTION 11. AMENDMENT. Section 46-04-14 of the North Dakota Century Code is amended and reenacted as follows:

46-04-14. ~~Secretary of state~~Legislative council to forward laws to counties.

As soon as the laws of each session of the legislative assembly are printed and ready for distribution, the ~~secretary of state~~legislative council shall forward ~~these~~the laws to which each county is entitled to the county auditor of the county.

SECTION 12. AMENDMENT. Section 46-04-18 of the North Dakota Century Code is amended and reenacted as follows:

46-04-18. ~~Secretary of state~~Legislative council to sell certain laws.

During the biennium immediately after publication, the ~~secretary of state~~legislative council mustshall sell copies of the session laws for the cost of publication and handling plus ten percent. In subsequent bienniums, the ~~secretary of state~~legislative council may determine and set a price for the copies of the

session laws not sold in the biennium immediately after their publication. The price set should maximize the recovery of the cost of publication and handling and minimize the number of volumes subject to disposal under section 46-04-19. All moneys received under the provisions of this section must be paid over to the state treasurer and credited to the general fund.

SECTION 13. AMENDMENT. Section 46-04-19 of the North Dakota Century Code is amended and reenacted as follows:

46-04-19. Secretary of state Legislative council may dispose of laws.

The ~~secretary of state~~legislative council may dispose of all volumes of the laws that are ten or more years old, except one volume of each ~~that, which~~ must be retained for historical purposes.

SECTION 14. AMENDMENT. Section 54-09-05 of the North Dakota Century Code is amended and reenacted as follows:

54-09-05. Salary of secretary of state.

The annual salary of the secretary of state is ~~one hundred thirty thousand dollars through June 30, 2024, and one hundred thirty-five thousand two hundred dollars~~one hundred thirty-nine thousand two hundred fifty-six dollars through June 30, 2026, and one hundred forty-three thousand four hundred thirty-four dollars thereafter.

SECTION 15. EXEMPTION - STATE FISCAL RECOVERY FUND. The amount of \$6,000,000 appropriated from federal funds derived from the state fiscal recovery fund for the purposes of an election management system and to upgrade FirstStop in section 1 of chapter 34 of the 2023 Session Laws is not subject to section 54-44.1-11 and any unexpended funds from these projects are available to the secretary of state for costs relating to an election management system and to upgrade FirstStop during the biennium beginning July 1, 2025, and ending June 30, 2027.

SECTION 16. EXEMPTION - STRATEGIC INVESTMENT AND IMPROVEMENTS FUND. The amount of \$1,500,000 appropriated from the strategic investment and improvements fund for the purposes of a new campaign system, contracted website redesign, and information technology enhancements in section 1 of chapter 34 of the 2023 Session Laws is not subject to section 54-44.1-11 and any unexpended funds from these projects are available to the secretary of state for costs relating to a new campaign system, contracted website redesign, and information technology enhancements during the biennium beginning July 1, 2025, and ending June 30, 2027.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1002.

House Vote: Yeas 86 Nays 1 Absent 7

Senate Vote: Yeas 46 Nays 0 Absent 1

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State